

Terms & Conditions

Last Updated: July 2026

These Terms and Conditions govern all engagements between TriSha Technologies & Trading (“TriSha,” “the Company,” “we,” or “us”) and its clients or customers (“Client,” “Customer,” “you,” or “Buyer”), across both our **Technology Division** and **Trading Division**. By placing an order, signing a proposal, or engaging our services, you agree to be bound by these Terms.

1. General Terms

1.1 Acceptance of Terms

Any purchase order, inquiry, project proposal, or transaction constitutes acceptance of these Terms and Conditions. These terms supersede any terms proposed by the Client unless explicitly agreed to in writing by an authorized representative of TriSha Technologies & Trading.

1.2 Structure of These Terms

These Terms are organized in three parts:

- **Part A** applies to Technology Services engagements (AI, software development, blockchain analytics, hosting and infrastructure, and related services)
- **Part B** applies to Trading Services transactions (metal trading, scrap wholesale, and general import & export)
- **Part C** contains general provisions applicable to both divisions

Where a conflict arises between Part A or Part B and a signed proposal, Statement of Work, or purchase order for a specific engagement, the signed document will prevail.

PART A — TECHNOLOGY SERVICES TERMS

2. Engagement & Scope of Work

2.1 Proposals & Statements of Work

Technology engagements begin with a written proposal or Statement of Work (“SOW”) describing scope, deliverables, timeline, and fees. Work begins only after written acceptance of the SOW.

2.2 Change Requests

Any change to agreed scope, timeline, or deliverables must be documented in writing and may result in adjusted fees or timelines.

3. Fees & Payment

3.1 Fixed-Scope Projects

Standard terms: 50% advance payment upon SOW signing, and 50% upon delivery, unless otherwise agreed in writing.

3.2 Ongoing Services

Hosting, infrastructure, and support services are billed monthly in advance, unless otherwise agreed.

3.3 Late Payment

Overdue invoices are subject to interest at 2% per month, and we reserve the right to suspend services until accounts are settled.

4. Intellectual Property

4.1 Client Materials

The Client retains ownership of all pre-existing materials, data, and content it provides to us for a project.

4.2 Deliverables

Upon full payment, the Client is granted ownership of custom deliverables created specifically for that engagement, excluding any pre-existing tools, frameworks, libraries, or methodologies owned by TriSha ("Background IP").

4.3 Background IP

TriSha retains ownership of all Background IP used in delivering a project and grants the Client a perpetual, royalty-free license to use it as embedded in the delivered work product.

4.4 Portfolio Rights

Unless otherwise agreed in writing, TriSha may reference completed engagements in general terms (e.g., industry, project type) for portfolio and marketing purposes, without disclosing confidential details.

5. Acceptance, Warranty & Support

5.1 Acceptance Testing

Deliverables are considered accepted if the Client does not raise written objections within 10 business days of delivery.

5.2 Warranty

We warrant that deliverables will function materially as specified for 30 days following acceptance. Defects reported within this period will be corrected at no additional cost.

5.3 Service Levels

For hosted or managed services, applicable uptime targets and support response times are defined in the relevant SOW or service agreement.

6. Client Responsibilities

Clients are responsible for providing timely feedback, necessary system access and credentials, accurate content and data, and any third-party licenses required for the engagement.

7. Limitation of Liability

Our total liability under any technology engagement is limited to the fees paid by the Client for that engagement in the preceding 12 months. We are not liable for indirect, consequential, or incidental damages, including loss of profits or data, except where such liability cannot be excluded by law.

PART B — TRADING SERVICES TERMS

8. Quotations and Orders

8.1 Quotation Validity

- All quotations are valid for 7 days unless otherwise specified
- Prices are subject to change based on LME fluctuations and availability
- Quotations are subject to prior sale

8.2 Order Confirmation

Orders are confirmed only upon receipt of:

- Signed purchase order or written acceptance
- Advance payment or Letter of Credit (as applicable)
- Completion of KYC documentation if required

9. Pricing and Payment

9.1 Pricing

- All prices quoted in USD unless otherwise specified
- Prices are based on current LME rates plus applicable premiums
- Additional charges (testing, inspection, special packaging) applied separately

9.2 Payment Terms

Standard payment terms:

- **New Customers:** 100% advance payment or confirmed Letter of Credit
- **Established Customers:** Net 30 days (subject to credit approval)
- **Large Orders:** 30% advance, balance against documents

9.3 Late Payment

Overdue accounts will be subject to:

- Interest charges at 2% per month on outstanding balances
- Suspension of future orders until the account is settled
- Recovery of legal costs and collection fees

10. Product Quality and Specifications

10.1 Quality Standards

All products conform to:

- Industry standard specifications (LME, ASTM, IS, etc.)
- Agreed contractual specifications
- Quality certificates provided upon request

10.2 Inspection and Testing

- Pre-shipment inspection available at buyer's cost

- Third-party certification can be arranged
- Samples available for approval before bulk production

11. Delivery and Transfer of Risk

11.1 Delivery Terms

Delivery is governed by agreed Incoterms 2020. Risk transfers according to the specified Incoterm.

11.2 Delivery Timeframes

- Estimated delivery times are indicative only
- Delays due to force majeure are not our responsibility
- Partial shipments may be made with prior notice

11.3 Delivery Acceptance

The Buyer must:

- Inspect goods upon receipt
- Note any visible damage on the delivery receipt
- Notify us of discrepancies within 48 hours

12. Returns, Claims, and Cancellations

12.1 Returns

- Returns accepted only for defective products
- Claims must be submitted within 7 days of receipt
- Photographic evidence and documentation required
- Return authorization must be obtained before shipping

12.2 Order Cancellations

- Cancellations accepted only before production/shipment
- Cancellation fees may apply: 10–20% of order value
- Custom orders are non-cancellable

13. Warranties and Liability

13.1 Limited Warranty

We warrant that all products will:

- Meet agreed specifications at time of delivery
- Be free from defects in material and workmanship

This warranty is in lieu of all other warranties, express or implied, including merchantability and fitness for a particular purpose.

13.2 Limitation of Liability

Our liability is limited to:

- Replacement of defective products, or
- Refund of the purchase price

We shall not be liable for consequential, indirect, special, or incidental damages including lost profits, business interruption, or loss of use.

PART C — GENERAL PROVISIONS

Applicable to both the Technology and Trading divisions.

14. Force Majeure

Neither party shall be liable for failure to perform obligations due to circumstances beyond reasonable control, including:

- Acts of God, natural disasters, pandemics
- War, terrorism, civil unrest
- Government actions, strikes, lockouts
- Transportation delays, port closures
- Material shortage or supplier failures

15. Confidentiality

Both parties agree to:

- Maintain confidentiality of pricing, specifications, technical documentation, source code, and business terms
- Not disclose confidential information to third parties without consent
- Use confidential information only for intended purposes

16. Intellectual Property (General)

All intellectual property rights in TriSha's trademarks, documentation, designs, software frameworks, and trading materials remain our exclusive property. This section governs TriSha's proprietary trademarks, products, and processes generally; ownership of Technology Services deliverables is governed separately by Section 4. The Client shall not:

- Use our trademarks without written permission
- Copy or reverse engineer our products, software, or processes
- Share proprietary or confidential information with competitors

17. Compliance and Legal

17.1 Regulatory Compliance

Both parties must comply with:

- All applicable export/import regulations
- Anti-corruption and anti-bribery laws
- Economic sanctions and trade restrictions
- Environmental and safety regulations
- Applicable data protection laws

17.2 Governing Law

These Terms and Conditions are governed by the laws of India for engagements conducted through our India operations, and by the laws of the United Arab Emirates for engagements conducted through our UAE-registered entity, as specified in the applicable order, proposal, or contract. Where not specified, the laws of India shall apply, and disputes shall be resolved through arbitration in Bengaluru, Karnataka, in accordance with the Indian Arbitration and Conciliation Act, 1996.

17.3 Jurisdiction

Subject to Section 17.2, the courts of Bengaluru, Karnataka, India shall have exclusive jurisdiction for any matters not subject to arbitration.

18. Amendments and Modifications

These Terms and Conditions may be updated from time to time. Continued engagement with TriSha Technologies & Trading constitutes acceptance of updated terms. Material changes will be communicated to existing customers and clients.

19. Severability

If any provision of these Terms and Conditions is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

20. Entire Agreement

These Terms and Conditions, together with the applicable proposal, Statement of Work, purchase order, and invoice, constitute the entire agreement between the parties and supersede all prior negotiations, representations, or agreements.

21. Contact Information

For questions regarding these Terms and Conditions:

TriSha Technologies & Trading

Registered Office: Ajman Free Zone, Ajman, United Arab Emirates

India Operations Office: 10042, Prestige Shantiniketan, Whitefield Road, Bengaluru, Karnataka 560001, India

Trading enquiries: sales@trishatechnologies.com

Technology enquiries: projects@trishatechnologies.com

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BY PLACING AN ORDER OR ENGAGING OUR SERVICES, YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO THESE TERMS AND CONDITIONS.

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